

HOUSE BILL No. 1181

DIGEST OF INTRODUCED BILL

Citations Affected: IC 2-5-55.

Synopsis: Eviction task force. Establishes the access to counsel in eviction task force (task force) to review matters related to the eviction process and potential funding sources to increase a tenant's access to counsel in an eviction proceeding. Sets forth membership, and requires the task force to issue a report to the legislative council. Provides that the task force expires December 31, 2026.

Effective: Upon passage.

Shackleford

January 5, 2026, read first time and referred to Committee on Judiciary.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1181

A BILL FOR AN ACT to amend the Indiana Code concerning the general assembly.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 2-5-55 IS ADDED TO THE INDIANA CODE AS
2 A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE UPON
3 PASSAGE]:

4 **Chapter 55. Access to Counsel in Eviction Task Force**

5 **Sec. 1. As used in this chapter, "task force" refers to the access**
6 **to counsel in eviction task force established by section 2 of this**
7 **chapter.**

8 **Sec. 2. The access to counsel in eviction task force is established**
9 **as a temporary task force serving the general assembly.**

10 **Sec. 3. (a) The task force consists of the following twelve (12)**
11 **members, all of whom are voting members:**

- 12 (1) A member of the house appointed by the speaker.
13 (2) A member of the house appointed by the minority leader
14 of the house.
15 (3) A member of the senate appointed by the president pro
16 tempore of the senate.
17 (4) A member of the senate appointed by the minority leader



of the senate.

(5) A member representing the Indiana Public Defender Council, appointed by the governor.

(6) A member representing the Indiana State Bar Association, appointed by the governor.

(7) A member representing the Fair Housing Center of Central Indiana, appointed by the governor.

(8) A member representing the Indiana Apartment Association, appointed by the governor.

(9) A member representing a tenant advocacy group, appointed by the speaker.

(10) A member who is a judge who presides over eviction cases in Indiana, appointed by the president pro tempore of the senate.

(11) Two (2) members whose income does not exceed fifty percent (50%) of the state median income adjusted for household size, appointed as follows:

(A) One (1) member appointed by the minority leader of the house.

(B) One (1) member appointed by the minority leader of the senate.

(b) The members appointed under subsection (a)(1) and (a)(3) shall serve as co-chairs of the task force for the duration of the task force.

(c) A member of the task force serves for the duration of the task force. However, a member of the task force, including each co-chair of the task force, serves at the will of the member's appointing authority.

(d) Appointing authorities shall appoint the members of the task force not later than June 1, 2026.

Sec. 4. (a) The task force shall meet at the call of the co-chairs.

(b) The task force shall meet for the first time not later than August 1, 2026.

(c) Seven (7) members of the task force constitute a quorum.

(d) The affirmative votes of a majority of the members of the task force are required for the task force to take action on any measure, including adoption of the report under section 7(2) of this chapter.

(e) All meetings of the task force are open to the public in accordance with and subject to IC 5-14-1.5. All records of the task force are subject to the requirements of IC 5-14-3.

Sec. 5. (a) A lay or legislative member of the task force is



entitled to receive the same per diem, mileage, and travel allowances paid to legislative members of interim study committees established by the legislative council.

(b) A member of the task force who is:

(1) a state employee; and

(2) not a member of the general assembly;

is not entitled to a per diem. However, the member is entitled to reimbursement for traveling expenses as provided under IC 4-13-1-4 and other expenses actually incurred in connection with the member's duties as provided in the state policies and procedures established by the Indiana department of administration and approved by the budget agency.

Sec. 6. The legislative services agency shall staff the task force. The task force shall operate under the policies and rules of the legislative council.

Sec. 7. The task force shall do the following:

(1) Conduct a study of:

(A) the eviction process throughout Indiana and the performance of designated organizations and community groups that provide eviction relief services; and

(B) potential funding sources to increase access to counsel to represent a tenant subject to an eviction proceeding.

(2) Not later than November 15, 2026, adopt and submit to the executive director of the legislative services agency, for distribution to the legislative council, a report that includes the following:

(A) The results of the task force's study under subdivision (1).

(B) The task force's recommendations with regard to state policies, including any recommended legislation, to provide a tenant with increased access to counsel in an eviction proceeding.

The report must be submitted in an electronic format under IC 5-14-6.

Sec. 8. This chapter expires December 31, 2026.

SECTION 2. An emergency is declared for this act.

